

MEMORANDUM FOR FILE

SUBJECT: SAP Non-Competitive Procurement Justification Memo

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.
3. This memorandum is derived from Enclosure 3, Department of Navy Simplified Acquisition Procedures Guide (April 2018) and is only applicable to acquisitions under the SAT.

II. DESCRIPTION OF ITEM OR SERVICE

Naval Surface Warfare Center, Carderock (NSWCCD) requires the repair/refurbishment of ITC 8292 sensor (serial number 005).

MANUFACTURER: Gavial Engineering & Manufacturing, Inc.
ADDRESS: 869 Ward Dr. Santa Barbara, CA 93111

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☐ **A. BRAND NAME:**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**

☒ **B. SOLE SOURCE** (select all that apply)

☒ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

Gavial, formerly ITC, is the original manufacturer of the ITC-8292. It is a customized sensor developed to fit Government specifications. The sensor has been in use for more than a decade. Current footprint fits within our measurement systems, with respect to electrical and mechanical compatibility. If unable to contract performance of work to Gavial ITC, we would need to identify an alternative sensor that may require replacement of current measurement system components or entirety.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

☐ **3. Other Reasons:** Item required must be a brand name product, or feature of a product, particular to one

manufacturer.

☐ **C. LIMITED SOURCE (FAR 8.405-6):**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**